

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: June 25, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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100	Novak vs. Andry, 24-01414288	MOTIONS TO COMPEL Defendant, Doran Andry ("Defendant"), moves for an order compelling Plaintiff, Hsiuyen Julie Novak ("Plaintiff"), to provide responses to (1) Defendant's Form Interrogatories, Set One, (2) Special Interrogatories, Set One, and (3) Requests for Production, Set One. Defendant also moves for an order (4) deeming matters in Defendant's Requests for Admission, Set One, admitted. In conjunction with these motions, Defendant moves for an order awarding sanctions in bringing the first three motions in the amount of \$1,675.45 for each motion. For

	the fourth motion, Defendant moves for an order awarding sanctions in the amount of \$1,675.45 against Plaintiff and Plaintiff's counsel, jointly and severally. As a threshold matter, Defendant recently filed a proof of service of these four motions on June 10, 2026, indicating that the motions were served on November 30, 2025, by electronic service. (ROA 137.) Here, Defendant provides evidence that on December 9, 2024, Defendant electronically served Plaintiff with Defendant's Form Interrogatories, Special Interrogatories, and Requests for Production, Set One; that extensions to provide responses were granted until March 7, 2025; that on March 15, 2025, Defendant's counsel reminded Plaintiff's counsel that objections had been waived and that these motions would be filed in no answers were received; that on November 26, 2025, Defendant's counsel again stated that these motions would be filed if answers were not provided; and that no responses to Defendant's Form Interrogatories, Special Interrogatories, and Requests for Production, Set One were ever provided. (ROA 96, 100, 102, Declaration of Paul F. Sorrentino, ¶¶ 4-20, Exs. A-F.) No opposition has been filed. As a result of Plaintiff's failure to serve responses to the interrogatories and requests for production, Plaintiff has waived any objection to the interrogatories and requests, including one based on privilege or on the protection for work product. (Code Civ. Proc. §§ 2030.290(a) [interrogatories]; 2031.300(a) [inspection demands].) Defendant's motions to compel Plaintiff's responses to Defendant's Form Interrogatories, Special Interrogatories, and Requests for Production, Set One are GRANTED. Plaintiff is ORDERED to serve verified responses to Defendant's Form Interrogatories, Special Interrogatories, and Requests for Production, Set One, without objections, within 30 days. <i>Requests for Admission</i> Defendant provides evidence that on December 9, 2024, Defendant electronically served Plaintiff with Defendant's Requests for Admission, Set One; that extensions which were granted until March 7, 2025; that on March 15, 2025, Defendant's counsel reminded Plaintiff's counsel that objections had been waived and that these motions would be filed in no answers were received; that on November 26, 2025, Defendant's counsel again stated that these motions would be filed if answers were not
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	provided; and that no responses to Defendant's Requests for Admission, Set One were ever received. (ROA 98, 100, 102, Declaration of Paul F. Sorrentino, ¶¶ 4-19, Exs. A-F.) As Plaintiff has not yet served a proposed response to the Requests for Admission, Set One, at all, Defendant's motion to deem the matters in Requests for Admissions, Set One, admitted is GRANTED. <i>Monetary Sanctions</i> Defendants seeks \$1,675.45 based on a hourly rate of \$400 per hour for 1.5 hours to draft the motion, 1.5 hours to review any opposition and to draft a reply, and 1 hour for the hearing, in addition to a filing fee of \$75.45. (ROA 96, 100, 102, Declaration of Paul F. Sorrentino, ¶¶ 21-23.) In light of the ruling on the motions, and the lack of opposition and reply, the Court reduces the amount of sanctions to \$1,200 for all three motions against Plaintiff, Hsiuyen Julie Novak to be paid within 30 days. As for the motion to deem requests for admission admitted, the Court awards an additional hour or \$400 against Plaintiff, Hsiuyen Julie Novak, and Plaintiff's counsel of record, jointly and severally, to be paid within 30 days. <i>Defendant to give notice.</i> <u>MOTION TO COMPEL FURTHER</u> Defendant, Doran Andry ("Defendant"), moves for an order compelling Plaintiff, Hsiuyen Julie Novak ("Plaintiff"), to provide further responses to Defendant's, Requests for Production, Set Two, Nos. 53-57, and for terminating sanctions, or in the alternative, monetary sanctions in the amount of \$2,575.45. Defendant contends that Plaintiff did not produce the phones requested by Requests for Production, No. 53 following the promise under oath to do so, and that the documents produced in response to Requests for Production, Nos. 54-57 were not responsive and not code compliant. Defendant also contends that Defendant's counsel attempted to meet and confer to obtain supplemental responses but Plaintiff's counsel failed to respond to these attempts. Defendant asserts that good cause exists in this case as all objections have been waived and Plaintiff wasted the Court's and Defendant's time by serving wholly improper and inadequate responses, and refusing to respond to Defendant's meet and confer attempts. Defendant asserts that terminating
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sanctions are warranted as this is the sixth discovery motion that Defendant has been forced to file in this case due to Plaintiff's utter disregard for the discovery process, including a constant refusal to communicate, meet and confer, or comply with discovery obligations, such that the Court should find that there has been multiple instances of misuse of the discovery process and impose terminating sanctions by dismissing the action of Plaintiff or striking the complaint then rendering judgment by default against Plaintiff. Defendant further asserts that, in the alternative, the Court should impose monetary sanctions against Plaintiff and her counsel in the amount of \$2,575.45, and requests that the sanctions not be reduced as it is clear that the amount previously ordered failed to cause compliance.

The motion is unopposed.

Merits

On February 10, 2025, Plaintiff was electronically served with Defendant's Requests for Production, Set Two. (Sorrentino Decl., ¶¶ 4, 16, Ex. A.) As set forth above, Plaintiff served late responses on October 25, 2025.

The requests for production are addressed in turn.

Request for Production No. 53: PRODUCE EACH of Decedent's PHONES (which herein includes landlines, cellular phones, mobile phones, tablets, and any other device used for telephone calls, text messages, or data) for forensic analysis, the search terms and time scope to be determined through meet and confer efforts between counsel but will include at least the time frame of January 1, 2023 to August 31, 2023, and terms "drugs," "high," "ketamine," "special K," "K," "MDMA," "ecstasy," "X," "molly," or "mandy," "weed," "grass," "flower," marijuana, "THC," "cannabis," "coke," "cocaine," "snow," "powder," "meth," "freebase," "lit," "drink," "alcohol," "buzz," "drunk," "fucked up," "Doran," "Andry," 9495003146, and Doran Andry's business names. In response to Request for Production, No. 53 Plaintiff stated: "The Decedent's cell phone is being produced as requested for examination to be conducted for the specified search terms within the period noted; accordingly, please provide the name and location of where to deliver Decedent's cell for the prescribed forensic analysis." Defendant's counsel provides that Decedent's phone was not produced as indicated as Defendant's counsel reached out to Plaintiff's counsel to request that Decedent's phone be sent to Dalman Investigations, LLC for examination and provided Plaintiff and her counsel with the appropriate address, but no

	response was provided and Decedent's phone was not produced. (Sorrentino Decl., ¶ 12.) In light of this showing, the Court GRANTS Defendant's motion to compel compliance with Plaintiff's statement of compliance. Request for Production No.54: PRODUCE a downloaded copy of Decedent's personal Facebook page. A downloaded copy of a Facebook page includes a copy of an individual's information, including photos and videos, posts on their wall, all of their messages, their friends list, and other content shared on their profile. A downloaded copy of Decedent's Facebook page can be obtained in the following way: (1) access the account from a web browser; (2) click the down arrow in the top, right corner of the Facebook page, which will display a dropdown menu; (3) click "Settings & Privacy"; (4) click "Settings"; (5) click "Download your information" from the menu on the left-side of the page; (6) select "Continue"; (7) select "Download or transfer information" from the pop-up menu; (8) select "Available information"; (9) select "Download to device"; (10) ensure the Date Range is set to "Custom" and reflects YOUR start date with SCRIPPS through the present, the Format is set to "HTML," and the Media Quality is set to "High"; and (11) click "Create files." Request for Production No.55: PRODUCE a downloaded copy of Decedent's personal Instagram page, A downloaded copy of an Instagram page includes a copy of an individual's information, including photos and videos, posts, all of their messages, their friends list, and other content shared on their profile. An individual can obtain a downloaded copy of an Instagram page in the following way: (1) access the account from a web browser; (2) click the menu icon on the bottom, left corner of the Instagram page, which will display a dropdown menu; (3) click "Settings"; (4) click the "Accounts Center" tab from the menu located on the left side of the page; (5) select "Your information and permissions"; (6) select "Download your information"; (7) click "Download or transfer information"; (8) select "All available information"; (19) select "Download to device"; (10) ensure the Date Range is set to "Custom" and reflects YOUR start date with SCRIPPS through the present, the Format is set to "HTML," and the Media Quality is set to "High"; and (11) click "Create files." Request for Production No. 56: PRODUCE a downloaded copy of Decedent's personal TikTok page. A downloaded copy of a TikTok page includes a copy of an individual's information, including username information, watch
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	history, comment history, and privacy settings. An individual can obtain a downloaded copy of a TikTok page in the following way: (1) access the account; (2) click menu button (three horizontal lines); (3) click "settings and privacy"; (4) click "account"; (5) click "download your data" ensuring the TXT file type is selected. Request for Production No.57: a. Request: PRODUCE a downloaded copy of Decedent's personal X (formerly Twitter) page. A downloaded copy of an X page includes a copy of an individual's information, including photos and videos, comments, profile information, messages, stories, searches, interactions with ads, and content X recommends. An individual can obtain a downloaded copy of an X page in the following way: (1) access the account; (2) click profile picture icon in top left corner; (3) click "settings and support"; (4) click "settings and privacy"; (5) click "your account"; (6) click "download an archive of your data"; (7) verify your identity; (8) click "request archive." The response to Requests for Production, Nos. 54-57 is identical. Plaintiff responded: "In compliance with this Request For Production, and after a diligent search and reasonable inquiry, all responsive documents within possession, custody, or control are produced concurrently herewith; and since discovery is continuing, the right to amend this response at a later date to incorporate later discovered responsive material to this particular request is reserved. Defendant provides that Plaintiff's production was non-compliant, non-responsive, and/or incomplete. Defendant's counsel provides that Plaintiff's responses to these requests "were neither proper nor code compliant as they simply contained a few screenshots and a couple of videos, despite specific demands for downloaded copies of decedent's social media pages," (Sorrentino Decl., ¶ 11, Ex. H-K.) A review of the documents produced indicates that Plaintiff did not fully comply as a downloaded copy of Decedent's personal Facebook page, a downloaded copy of Decedent's personal Instagram page, a downloaded copy of Decedent's personal TikTok page, and a downloaded copy of Decedent's personal X (formerly Twitter) page were not produced as requested by Requests for Production, Nos. 54-57. Accordingly, the Court GRANTS the motion to compel compliance as to Requests for Production, Nos. 54-57. Plaintiff is ORDERED to produce the materials and documents requested by Requests for Production, Set
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		Two, Nos. 53-57 in accordance with Plaintiff's agreement to produce within 30 days. <i>Terminating</i> Defendant seeks terminating sanctions and a monetary sanction. Here, Defendant has shown that Plaintiff has failed to engage in discovery or meet and confer efforts, but has not shown a failure to comply with a court order. Defendant does not otherwise present evidence supporting the issuance of a terminating sanction. Defendant's request for a terminating sanction is DENIED. <i>Monetary Sanctions</i> As the Court grants the motion, and there is no showing that Plaintiff acted with substantial justification or that other circumstances make the imposition of the sanction unjust, the Court grants a monetary sanction. Defendant requests that monetary sanctions in the amount of \$2,075.45 be awarded. The requested amount consists of 2.5 hour to draft this motion, an anticipated 1.5 hours to review the opposition and draft a reply, and 1 hour for the hearing on the motion, at \$400 per hour, in addition to \$75.45 for the filing fee. (Sorrentino Decl., ¶¶ 28-29.) As there is no opposition or reply, the Court GRANTS reduced monetary sanctions in the amount of \$1,475.45 (\$400/hour x 3.5 + \$75.45) against Plaintiff, to be paid within 30 days. <i>Defendant to give notice.</i>
101	Space Exploration Technologies Corp. vs. Enteshari, 23-01365637	On 12/12/2025 Defendants filed the following Motions , set for hearing on 6/25/2026: (ROA 169) Defendant Ali Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Requests for Production of Documents and Tangible Things, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion. [Note: MP fails to indicate which RPDs are at issue in the notice of motion, nor does MP indicate how much money in sanctions he seeks.] (ROA 181) Defendant Amin Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Requests for Production of Documents and Tangible Things, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion.